



Constitutional Reform Act 2005

2005 CHAPTER 4

An Act to make provision for modifying the office of Lord Chancellor, and to make provision relating to the functions of that office; to establish a Supreme Court of the United Kingdom, and to abolish the appellate jurisdiction of the House of Lords; to make provision about the jurisdiction of the Judicial Committee of the Privy Council and the judicial functions of the President of the Council; to make other provision about the judiciary, their appointment and discipline; and for connected purposes. [24th March 2005]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART 1

THE RULE OF LAW

1 The rule of law

This Act does not adversely affect—

- (a) the existing constitutional principle of the rule of law, or
- (b) the Lord Chancellor's existing constitutional role in relation to that principle.

PART 2

ARRANGEMENTS TO MODIFY THE OFFICE OF LORD CHANCELLOR

*Qualifications for office of Lord Chancellor***2 Lord Chancellor to be qualified by experience**

- (1) A person may not be recommended for appointment as Lord Chancellor unless he appears to the Prime Minister to be qualified by experience.
- (2) The Prime Minister may take into account any of these –
 - (a) experience as a Minister of the Crown;
 - (b) experience as a member of either House of Parliament;
 - (c) experience as a qualifying practitioner;
 - (d) experience as a teacher of law in a university;
 - (e) other experience that the Prime Minister considers relevant.
- (3) In this section “qualifying practitioner” means any of these –
 - (a) a person who has a Senior Courts qualification, within the meaning of section 71 of the Courts and Legal Services Act 1990 (c. 41);
 - (b) an advocate in Scotland or a solicitor entitled to appear in the Court of Session and the High Court of Justiciary;
 - (c) a member of the Bar of Northern Ireland or a solicitor of the Court of Judicature of Northern Ireland.

*Continued judicial independence***3 Guarantee of continued judicial independence**

- (1) The Lord Chancellor, other Ministers of the Crown and all with responsibility for matters relating to the judiciary or otherwise to the administration of justice must uphold the continued independence of the judiciary.
- (2) Subsection (1) does not impose any duty which it would be within the legislative competence of the Scottish Parliament to impose.
- (3) A person is not subject to the duty imposed by subsection (1) if he is subject to the duty imposed by section 1(1) of the Justice (Northern Ireland) Act 2002 (c. 26).
- (4) The following particular duties are imposed for the purpose of upholding that independence.
- (5) The Lord Chancellor and other Ministers of the Crown must not seek to influence particular judicial decisions through any special access to the judiciary.
- (6) The Lord Chancellor must have regard to –
 - (a) the need to defend that independence;
 - (b) the need for the judiciary to have the support necessary to enable them to exercise their functions;

- (c) the need for the public interest in regard to matters relating to the judiciary or otherwise to the administration of justice to be properly represented in decisions affecting those matters.
- (7) In this section “the judiciary” includes the judiciary of any of the following—
 - (a) the Supreme Court;
 - (b) any other court established under the law of any part of the United Kingdom;
 - (c) any international court.
- (8) In subsection (7) “international court” means the International Court of Justice or any other court or tribunal which exercises jurisdiction, or performs functions of a judicial nature, in pursuance of—
 - (a) an agreement to which the United Kingdom or Her Majesty’s Government in the United Kingdom is a party, or
 - (b) a resolution of the Security Council or General Assembly of the United Nations.

4 Guarantee of continued judicial independence: Northern Ireland

- (1) For section 1 of the Justice (Northern Ireland) Act 2002 (c. 26) (guarantee of continued judicial independence) substitute—

“1 Guarantee of continued judicial independence

- (1) The following persons must uphold the continued independence of the judiciary—
 - (a) the First Minister,
 - (b) the deputy First Minister,
 - (c) Northern Ireland Ministers, and
 - (d) all with responsibility for matters relating to the judiciary or otherwise to the administration of justice, where that responsibility is to be discharged only in or as regards Northern Ireland.
- (2) The following particular duty is imposed for the purpose of upholding that independence.
- (3) The First Minister, the deputy First Minister and Northern Ireland Ministers must not seek to influence particular judicial decisions through any special access to the judiciary.
- (4) In this section “the judiciary” includes the judiciary of any of the following—
 - (a) the Supreme Court;
 - (b) any other court established under the law of any part of the United Kingdom;
 - (c) any international court.
- (5) In subsection (4) “international court” means the International Court of Justice or any other court or tribunal which exercises jurisdiction, or performs functions of a judicial nature, in pursuance of—
 - (a) an agreement to which the United Kingdom or Her Majesty’s Government in the United Kingdom is a party, or

- (b) a resolution of the Security Council or General Assembly of the United Nations.”
- (2) In section 91(2) of that Act (extent: provisions not restricted to Northern Ireland), before paragraph (a) insert—
 - “(za) section 1,”.

Representations by senior judges

5 Representations to Parliament

- (1) The chief justice of any part of the United Kingdom may lay before Parliament written representations on matters that appear to him to be matters of importance relating to the judiciary, or otherwise to the administration of justice, in that part of the United Kingdom.
- (2) In relation to Scotland those matters do not include matters within the legislative competence of the Scottish Parliament, unless they are matters to which a Bill for an Act of Parliament relates.
- (3) In relation to Northern Ireland those matters do not include transferred matters within the legislative competence of the Northern Ireland Assembly, unless they are matters to which a Bill for an Act of Parliament relates.
- (4) In subsection (3) the reference to transferred matters has the meaning given by section 4(1) of the Northern Ireland Act 1998 (c. 47).
- (5) In this section “chief justice” means—
 - (a) in relation to England and Wales or Northern Ireland, the Lord Chief Justice of that part of the United Kingdom;
 - (b) in relation to Scotland, the Lord President of the Court of Session.

6 Representations to the Northern Ireland Assembly

- (1) The Lord Chief Justice of Northern Ireland may lay before the Northern Ireland Assembly written representations on matters within subsection (2) that appear to him to be matters of importance relating to the judiciary, or otherwise to the administration of justice, in Northern Ireland.
- (2) The matters are—
 - (a) excepted or reserved matters to which a Bill for an Act of the Northern Ireland Assembly relates;
 - (b) transferred matters within the legislative competence of the Northern Ireland Assembly, unless they are matters to which a Bill for an Act of Parliament relates.
- (3) In subsection (2) references to excepted, reserved and transferred matters have the meaning given by section 4(1) of the Northern Ireland Act 1998.

Judiciary and courts in England and Wales

7 President of the Courts of England and Wales

- (1) The Lord Chief Justice holds the office of President of the Courts of England and Wales and is Head of the Judiciary of England and Wales.

- (2) As President of the Courts of England and Wales he is responsible –
 - (a) for representing the views of the judiciary of England and Wales to Parliament, to the Lord Chancellor and to Ministers of the Crown generally;
 - (b) for the maintenance of appropriate arrangements for the welfare, training and guidance of the judiciary of England and Wales within the resources made available by the Lord Chancellor;
 - (c) for the maintenance of appropriate arrangements for the deployment of the judiciary of England and Wales and the allocation of work within courts.
- (3) The President of the Courts of England and Wales is president of the courts listed in subsection (4) and is entitled to sit in any of those courts.
- (4) The courts are –
 - the Court of Appeal
 - the High Court
 - the Crown Court
 - the county courts
 - the magistrates' courts.
- (5) In section 1 of the Supreme Court Act 1981 (c. 54), subsection (2) (Lord Chancellor to be president of the Supreme Court of England and Wales) ceases to have effect.

8 Head and Deputy Head of Criminal Justice

- (1) There is to be a Head of Criminal Justice.
- (2) The Head of Criminal Justice is –
 - (a) the Lord Chief Justice, or
 - (b) if the Lord Chief Justice appoints another person, that person.
- (3) The Lord Chief Justice may appoint a person to be Deputy Head of Criminal Justice.
- (4) The Lord Chief Justice must not appoint a person under subsection (2)(b) or (3) unless these conditions are met –
 - (a) the Lord Chief Justice has consulted the Lord Chancellor;
 - (b) the person to be appointed is an ordinary judge of the Court of Appeal.
- (5) A person appointed under subsection (2)(b) or (3) holds the office to which he is appointed in accordance with the terms of his appointment.

9 Head and Deputy Head of Family Justice

- (1) The President of the Family Division is Head of Family Justice.
- (2) The Lord Chief Justice may appoint a person to be Deputy Head of Family Justice.
- (3) The Lord Chief Justice must not appoint a person under subsection (2) unless these conditions are met –
 - (a) the Lord Chief Justice has consulted the Lord Chancellor;
 - (b) the person to be appointed is an ordinary judge of the Court of Appeal.

- (4) A person appointed as Deputy Head of Family Justice holds that office in accordance with the terms of his appointment.

Judiciary and courts in Northern Ireland

10 The Lord Chancellor and Northern Ireland courts

In the Judicature (Northern Ireland) Act 1978 (c. 23) after section 68 insert –

“68A Lord Chancellor’s duty

- (1) The Lord Chancellor is under a duty to ensure that there is an efficient and effective system to support the carrying on of the business of –
 - (a) the Supreme Court,
 - (b) county courts,
 - (c) magistrates’ courts, and
 - (d) coroners’ courts,
 and that appropriate services are provided for those courts.
- (2) The Lord Chancellor must, within 18 months of the coming into force of this section, and afterwards annually, prepare and lay before both Houses of Parliament a report as to the way in which he has discharged his duty under subsection (1).”

11 Lord Chief Justice of Northern Ireland

For subsection (1) of section 12 of the Justice (Northern Ireland) Act 2002 (c. 26) (role of the Lord Chief Justice) substitute –

- “(1A) The Lord Chief Justice holds the office of President of the Courts of Northern Ireland and is Head of the Judiciary of Northern Ireland.
- (1B) As President of the Courts of Northern Ireland he is responsible –
 - (a) for representing the views of the judiciary of Northern Ireland to Parliament, the Lord Chancellor and Ministers of the Crown generally;
 - (b) for representing the views of the judiciary of Northern Ireland to the Northern Ireland Assembly, the First Minister and deputy First Minister and Northern Ireland Ministers;
 - (c) for the maintenance of appropriate arrangements for the welfare, training and guidance of the judiciary of Northern Ireland within the resources made available by the Lord Chancellor;
 - (d) for the maintenance of appropriate arrangements for the deployment of the judiciary of Northern Ireland and the allocation of work within courts.
- (1C) The President of the Courts of Northern Ireland is president of the courts listed in subsection (1D) and is entitled to sit in any of those courts.
- (1D) The courts are –
 - the Court of Appeal
 - the High Court
 - the Crown Court

the county courts
the magistrates' courts.”

Other provisions about the judiciary and courts

12 Powers to make rules

- (1) Part 1 of Schedule 1 sets out a process for the exercise of rule-making powers.
- (2) Part 2 of the Schedule contains amendments of Acts that contain rule-making powers.
- (3) Those amendments –
 - (a) provide for those powers to be exercised in accordance with the process set out in Part 1 of the Schedule, and
 - (b) make consequential provision.

13 Powers to give directions

- (1) Part 1 of Schedule 2 sets out a process for the exercise of powers to give directions.
- (2) Part 2 of the Schedule contains amendments of Acts that contain powers to give directions.
- (3) Those amendments –
 - (a) provide for those powers to be exercised in accordance with the process set out in Part 1 of the Schedule, and
 - (b) make consequential provision.

14 Transfer of appointment functions to Her Majesty

Schedule 3 provides for –

- (a) Her Majesty instead of the Lord Chancellor to make appointments to certain offices, and
- (b) the modification of enactments relating to those offices.

15 Other functions of the Lord Chancellor and organisation of the courts

- (1) Schedule 4 provides for –
 - (a) the transfer of functions to or from the Lord Chancellor,
 - (b) the modification of other functions of the Lord Chancellor,
 - (c) the modification of enactments relating to those functions, and
 - (d) the modification of enactments relating to the organisation of the courts.
- (2) Schedule 5 makes similar provision about functions under legislation relating to Northern Ireland.

16 Functions of the Lord Chief Justice during vacancy or incapacity

- (1) This section applies during any period when –
 - (a) the office of Lord Chief Justice is vacant, or